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|     |                                                                   | <p>parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.</p> <p>“Code of Civil Procedure section 664.6 provides a summary procedure to enforce a settlement agreement by entering judgment pursuant to the terms of the settlement. [Citation.]” (<i>Hines v. Lukes</i> (2008) 167 Cal.App.4th 1174, 1182.)</p> <p>Plaintiff states that Defendant has failed to close escrow within 75 days of the execution of their settlement agreement as required to buy out Plaintiff’s interest in the property. Plaintiff contends that the subject property must therefore be sold under the terms of the settlement agreement. Plaintiff requests an order for (1) 18851 Quince Circle, Fountain Valley, CA 92708 to be sold, and (2) for Plaintiff to receive 81.5% of the sales proceeds and Defendant to receive the remaining 18.5% pursuant to Sections 2.3 and 5.9 of the settlement agreement.</p> <p><b>Plaintiff has not submitted any evidence to support the assertion that Defendant failed to close escrow.</b> The only evidence submitted by Plaintiff is a declaration by counsel. This declaration is insufficient, as it does not mention any failure by Defendant to close escrow. Evidence showing the particular violation asserted here—Defendant’s failure to close escrow and complete purchase within 75 days after the execution of the settlement agreement—is required before the Court can enter the judgment requested by Plaintiff.</p> <p>Based on the above, the Motion is <b>DENIED without prejudice.</b></p> <p><b>Plaintiff to give notice.</b></p> |
| 12. | <p><b>30-2024-01431856</b></p> <p><b>Vargas vs. Hernandez</b></p> | <p><b>1. Case Management Conference</b><br/><b>2. Motion to Compel Answers to Form Interrogatories</b><br/><b>3. Motion to Compel Answers to Special Interrogatories</b><br/><b>4. Motion to Compel Production</b><br/><b>5. Motion to Compel Production</b><br/><b>6. Motion to Compel Production</b><br/><b>7. Order to Show Cause re: Appointment of Referee</b></p> <p>Plaintiff Yharetzy Vargas, a minor by and through her guardian ad litem, Yuliana Vargas Pompa (“Plaintiff”) moves to compel defendant Grisell Gua Ramirez Hernandez (“Defendant”) to serve verified responses to Form Interrogatories (Set One), Special Interrogatories (Set One), and Demands for Production (Sets One, Two, and Three) and for an order imposing monetary sanctions against Defendant for her failure to serve timely responses.</p> <p>Verified responses to the discovery at issue have been provided. Thus, the Motions are <b>DENIED as MOOT.</b></p> <p>However, Plaintiff’s requests for monetary sanctions against Defendant and her counsel are <b>GRANTED</b> in the amount of \$1,000.00, as the Court finds no substantial justification for Defendant’s delay in providing responses until after these Motions were filed. (Code Civ. Proc., §§ 2030.300(d), 2031.310(h); Cal. Rules of Court, rule 3.1348(a).)<br/><b>Sanctions to be paid within 30 days.</b></p> <p><b>Moving party to give notice.</b></p>                                                                                                                                                                                                                                                                                                                                                                                                                     |

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| 13.                                                        | 30-2025-01471437 | <p style="text-align: center;"><b>1. Motion for Judgment on the Pleadings</b></p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| <p><b>Masciel vs. Volkswagon Group of America, Inc</b></p> |                  | <p>MP seeks judgment on the pleadings on the grounds that the <b>fourth cause of action</b> to Plaintiff GARRETT J MASCIEL’s Complaint does not and cannot state facts sufficient to constitute a claim against Defendants. (ROA 107, 103)</p> <p>Despite the clear error in Defendants’ Notice of Motion and Plaintiff’s failure to meet and confer in violation of CCP§439, the Court will proceed to rule on the merits.</p> <p>To that end, the Motion is <b>DENIED</b>.</p> <p><b><u>1<sup>st</sup>-4<sup>th</sup> causes of action</u></b></p> <p>Defendants argue with respect to these four causes of action that Plaintiffs’ Complaint fails to state a cause of action under the Song-Beverly Consumer Warranty Act because it does not allege that Plaintiffs purchased a consumer good, nor does it allege that Plaintiffs were a buyer of the Subject Vehicle.</p> <p>Defendants seemingly ignore Plaintiffs’ allegation that “Plaintiffs are "buyers" of consumer goods under the Act,” and that “Defendant VWGOA is a "manufacturer" and/or "distributor" under the Act.” (Complaint, ¶ 9.)</p> <p><b><u>5<sup>th</sup> cause of action for Negligent repair</u></b></p> <p>The elements of negligence are: “(1) a legal duty to use due care; (2) a breach of such legal duty; [and] (3) the breach as the proximate or legal cause of the resulting injury.” (<i>Ladd v. County of San Mateo</i> (1996) 12 Cal.4th 913, 917.)</p> <p>Plaintiffs allege that Defendant South Coast owed them “a duty to use ordinary care and skill in the storage, preparation and repair of the Subject Vehicle,” and “breached its duty by failing to properly store, prepare and repair the Subject Vehicle in accordance with industry standards,” proximately causing Plaintiffs’ damages. (Complaint, ¶¶ 58-60.)</p> <p>Defendants contend that the economic loss rule bars this cause of action.</p> <p>The economic loss rule provides that “tort recovery for breach of a contract duty is generally barred [] unless... the defendant's injury-causing conduct violated a duty that is independent of the duties and rights assumed by the parties when they entered the contract [and] the defendant's conduct must have caused injury to persons or property that was not reasonably contemplated by the parties when the contract was formed.” (<i>Rattagan v. Uber Technologies, Inc.</i> (2024) 17 Cal.5th 1, 20–21.)</p> <p>Plaintiffs’ negligent repair claim against Defendant South Coast is not alleged to be based on any contract. This is unlike the claims against Volkswagen which are based on the warranty issued by Volkswagen. Plaintiffs only allege that Audi “breached its duty to Plaintiffs to use ordinary care and skill by failing to properly store, prepare and repair the Subject Vehicle in accordance with industry standards.” (Complaint¶58.)</p> <p>Therefore, the economic loss rule does not apply here.</p> |